

Arvind Kumar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 May 2022 · Writ-C No. 29545 of 2021 · **Writ disposed; clause 6.8 objection to be decided; coercive recovery stayed.**

HEADNOTE

Without examining the merits of a demand of Rs 7,56,011, the High Court disposed of the writ on the licensee's statement by granting liberty to file an objection under clause 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided after hearing within the next four weeks, and stayed coercive action on the demand for eight weeks or till disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Arvind Kumar challenged a demand notice dated 7 October 2021 for Rs 7,56,011 issued by the distribution licensee, and sought a direction that his objection of 13 October 2021 be decided under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, with recovery stayed. After adjournments, none appeared for him even on the revised call. Counsel for the Power Distribution Corporation stated that an objection to the demand could be filed and would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

clause 6.8 objection as alternate remedy

HOLDING

A writ challenging a licensee's demand, without any opinion on merits, was disposed by granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, the assessing officer must decide it in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action may be taken on the demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court directed that a clause 6.8 objection, if filed within four weeks, be decided in accordance with law within the next four weeks after hearing, and stayed coercive recovery for eight weeks or till disposal, whichever is earlier. ¶ 4

assessment-6.8-alternate-remedy The writ against the demand of Rs 7,56,011 was disposed without a merits grant or refusal, relegating the consumer to the clause 6.8 objection. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY AND QUANTUM OF THE DEMAND NOTICE DATED 07.10.2021 FOR RS 7,56,011

The Court expressly declined to express any opinion on merits. ¶ 4

NOT DECIDED — WHETHER THE REPRESENTATION DATED 13.10.2021 ALREADY CONSTITUTED A VALID CLAUSE 6.8 OBJECTION

Liberty was given to submit a fresh objection under Para 6.8 within four weeks rather than directing decision of the existing representation as such. ¶ 4

